Harbor Point Mutual Auto Insurance

Bodily Injury Unit

Claim Notes

Claim number:	C-1398
Claimant:	Darren Silva
Adjuster:	Alison Sweeney

3 Jun 2023 - Claim opened following report of a sideswipe collision during a lane change on a multi-lane roadway. Insured vehicle contacetd the claimant's vehicle on the driver's side rear quarter panel. Claimant reports neck pain and headache at the scene and was transported to a local emergency department for evaluation. Preliminary liability appears to favor the claimant, pending statements from both drivers and review of any available dashcam footage.

7 Jun 2023 - Spoke with the claimant by phone. Claimant reports being diagnosed with a concussion and advised to limit screen time and rest. Claimant states they are not represented by an attorney and has not yet consulted one. Explained the claims process, the available coverage under the policy, and the claimant's right to seek independent advice. Requested copies of all medical records and discharge paperwork.

10 Jun 2023 - Obtained a recorded statement from the insured driver. Insured states they checked the mirror and signaled but did not see the claimant's vehicle in the adjacent lane. Insured acknowledges contact occurred as they merged. Requested the insured's photos of both vehicles and the scene. Vehicle inspection scheduled for the claimant's vehicle at the preferred repair facility.

17 Jun 2023 - Received the claimant's emergency department records, which document a diagnosis of concussion with no fracture on imaging. Claimant reports ongoing headaches and difficulty concentrating at work. Reviewed the file with the supervisor. Claimant's treating physician has recommended follow-up in two weeks. Reserves adjusted to reflect the medical component. Sent the claimant a written summary of their rights and a list of documents still needed.

19 Jun 2023 - Follow-up call with the claimant. Claimant is still experiencing headaches but reports slight improvement. Confirmed the rental vehicle arrangement and the rpeair estimate timeline. Provided the claimant with the adjuster contact information and advised that additional medical documentation from the follow-up visit would help move the bodily injury evaluation forward. Diary set for review once the follow-up records are received.

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Recorded Statement

Claim number:	C-1398
Statement of:	Darren Silva
Taken by:	Alison Sweeney
Date:	6 Jun 2023

Q: Thank you for taking the time to give this recorded statement. Can you confirm you are comfortable with us recording this call?

A: Yes, that's fine.

Q: Please describe where you were when the collision happened.

A: I was driving on the highway in Sugar Land, in the middle of the afternoon. I was in the left lane heading toward the interchange.

Q: What were you doing right before the impact?

A: I needed to move over to the right lane because my exit was coming up. I checked my mirror, I think, and then I started to change lanes.

Q: Did you use your turn signal?

A: I believe I did, but I'm not completely sure. Everything happened pretty fast.

Q: What happened next?

A: The other vehicle came up on my right side and we sideswiped each other. I heard a loud scrape and felt my car jolt. I tried to steer back into my lane and then I stopped on the shoulder.

Q: Did you hit your head at any point?

A: Yes. My head hit the window or the frame when the car shifted. I didn't lose consciousness, I don't think, but I was dizzy and had a headache right after.

Q: Have you been seen by a medical provider since the collision?

A: Yes, I went to urgent care that evening. They said I have a concussion and told me to rest and avoid screens for a while.

Q: Are you still experiencing symptoms?

A: Yes, I still get headaches and I feel foggy sometimes, especially when I'm reading or looking at my phone for long periods.

Q: Thank you. Is there anything you would like to add to your statement?

A: No, I think that covers it. I just want to get my car repaired and get better.

Q: Thank you. This concludes the recorded statement.